

Mark A. Garcia
7403 Creekbluff Dr
Austin, TX 78750
[REDACTED] . [REDACTED]

[Date: TBD]

NYOS Charter School
Attn: Public Information Act Request
12333 N Lamar Blvd
Austin, TX 78753
openrecords@nyos.org

Re: Texas Public Information Act Request — Request 9 of a series. The corrective action plan referenced in the November 19, 2024 special-meeting motion conditionally accepting the FY 2024 audit, and all related updates and communications through the present.

Dear Public Information Officer:

Pursuant to the Texas Public Information Act, Texas Government Code Chapter 552, and as applied to open-enrollment charter schools by Texas Education Code § 12.1051, I respectfully request the following public information from NYOS Charter School, Inc.

This is one of a planned series of narrowly-scoped requests. Submitting them in sequence is intended to ease your office's workload and to allow rolling production of records as they are located. The records sought below are limited to the specific subject described in the Re: line.

Records sought

For the period from **April 1, 2024 through the date of NYOS's response** (the “audit corrective action update” has been a standing Financial Oversight Committee item since the April 16, 2024 meeting):

1. The full **corrective action plan** referenced in the November 19, 2024 special-meeting motion accepting the FY 2024 audit “subject to completion of the procurement testing, in light of the corrective action plan, and review by the board.”
2. Any related procurement-testing records, working papers, draft testing memos, or auditor correspondence concerning the procurement-testing portion of the FY 2024 audit.
3. All updates to the corrective action plan presented to the Board of Trustees, the Financial Oversight Committee, or the auditor — including written status reports, tracking spreadsheets, dashboard documents, and meeting handouts — from April 1, 2024 forward.

4. Any communications between NYOS (staff, trustees, or counsel) and the independent auditor (Blazek & Vetterling or any successor) regarding the scope, progress, or completion of the corrective action plan during the period above.

Format and delivery

I request electronic copies of responsive records, delivered by email to the address above. Where original records exist only in physical form, electronic scans (PDF or comparable format) are acceptable.

Cost

Pursuant to Texas Government Code § 552.2615, please provide an itemized written estimate in advance of any charge that, in total, would exceed \$100.00. I am prepared to authorize production at or below that amount; above that figure, I ask to be contacted before work proceeds so that I may narrow the scope or authorize the additional cost.

Student information

This request does not seek personally identifiable student information. To the extent any responsive record incidentally contains information governed by the Family Educational Rights and Privacy Act (FERPA), please redact that information and produce the remainder.

Partial and rolling production

If any portion of this request is denied, withheld, or determined by NYOS to require an Attorney General ruling under Texas Government Code § 552.301, I respectfully ask that the remaining responsive records be produced on a rolling basis rather than the entire response being withheld pending resolution of any single category.

Acknowledgment

Please confirm receipt of this request at your earliest convenience. I understand that NYOS has 10 business days under § 552.221(d) either to produce the responsive records, certify a date by which production will occur, or seek an Attorney General ruling for any portion claimed exempt.

Thank you for your time and for the work your office does in fulfilling these requests.

Respectfully,

Mark A. Garcia

NYOS parent · [Date: TBD]